



U.S. Department
of Transportation

**Pipeline and Hazardous
Materials Safety Administration**

October 27, 2011

East Building, PHH-30
1200 New Jersey Avenue S.E.
Washington, D.C. 20590

DOT-SP 15462
(THIRD REVISION)

EXPIRATION DATE: October 31, 2011
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1. GRANTEE: United States Environmental Protection Agency
Region 9
Signal Hill, CA
2. PURPOSE AND LIMITATION:
 - a. This emergency special permit authorizes the one-time, one-way transportation in commerce of approximately twenty two DOT Specification 3AA and 4BW cylinders containing an experimental gas by motor vehicle for destruction. This special permit provides no relief from the Hazardous Materials Regulations (HMR) other than as specifically stated herein. The most recent revision supersedes all previous revisions.
 - b. The safety analyses performed in development of this special permit only considered the hazards and risks associated with transportation in commerce. The safety analyses did not consider the hazards and risks associated with consumer use, use as a component of a transport vehicle or other device, or other uses not associated with transportation in commerce.
 - c. No party status will be granted to this special permit.
3. REGULATORY SYSTEM AFFECTED: 49 CFR Parts 106, 107 and 171-180.
4. REGULATIONS FROM WHICH EXEMPTED: 49 CFR § 173.21 in that the material is unstable and thus forbidden for transportation, except as provided herein.
5. BASIS: This emergency special permit is based on the application of United States Environmental Protection Agency Region 9 dated October 3, 2011, and additional information

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submitted October 20, 2011, submitted in accordance with § 107.117 and a determination that it is necessary to prevent significant injury to persons or property.

6. HAZARDOUS MATERIALS (49 CFR § 172.101):

Hazardous Materials Description			
Proper shipping name	Hazard Class/ Division	Identi- fication Number	Packing Group
Compressed gas, flammable, n.o.s. (contains hydrogen and oxygen)	2.1	UN1954	N/A

7. SAFETY CONTROL MEASURES:

a. PACKAGING - Prescribed packagings are approximately twenty-two DOT Specification and non-DOT Specification cylinders as described in the application on file.

i. The valves of the cylinders must be protected during transportation as described in § 173.301(h).

ii. Cylinders must be secured against shifting, including relative motion between packages, during transportation as described in § 177.834(a).

b. SAFETY CONTROLS - The motor carrier is Double Barrel Environmental Services (an EPA Emergency and Rapid Removal Services Contractor). The shipment must be escorted by US EPA Emergency Response Federal On-Scene Coordinators.

c. OPERATIONAL CONTROLS - Transportation authorized is one-time, one-way from the current locations at the SSI facility in Sylmar, CA, and the Los Angeles Co. Fire Department Del Valle Training Center, Castaic, CA. to U.S. Naval Air Weapons Station China Lake, (USNAWSCL), Ridgecrest, CA, for destruction by the FBI bomb squad. Operations must be conducted under the direction of the United States Environmental Protection Agency, Region 9.

8. SPECIAL PROVISIONS: The marking requirements of § 172.301(c) are waived.

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9. MODES OF TRANSPORTATION AUTHORIZED: Motor Vehicle.
10. MODAL REQUIREMENTS: None.
11. COMPLIANCE: Failure by a person to comply with any of the following may result in suspension or revocation of this special permit and penalties prescribed by the Federal hazardous materials transportation law, 49 U.S.C. 5101 et seq:
- o All terms and conditions prescribed in this special permit and the Hazardous Materials Regulations, 49 CFR Parts 171-180.
 - o Persons operating under the terms of this special permit must comply with the security plan requirement in Subpart I of Part 172 of the HMR, when applicable.
 - o Registration required by § 107.601 et seq., when applicable.

Each "Hazmat employee", as defined in § 171.8, who performs a function subject to this special permit must receive training on the requirements and conditions of this special permit in addition to the training required by §§ 172.700 through 172.704.

No person may use or apply this special permit, including display of its number, when this special permit has expired or is otherwise no longer in effect.

Under Title VII of the Safe, Accountable, Flexible, Efficient Transportation Equity Act: A Legacy for Users (SAFETEA-LU)- "The Hazardous Materials Safety and Security Reauthorization Act of 2005" (Pub. L. 109-59), 119 Stat. 1144 (August 10, 2005), amended the Federal hazardous materials transportation law by changing the term "exemption" to "special permit" and authorizes a special permit to be granted up to two years for new special permits and up to four years for renewals.

12. REPORTING REQUIREMENTS: Shipments or operations conducted under this special permit are subject to the Hazardous Materials Incident Reporting requirements specified in 49 CFR §§ 171.15 Immediate notice of certain hazardous materials incidents, and 171.16 Detailed hazardous materials incident reports. In addition, the grantee(s) of this special permit must notify the Associate Administrator for

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Hazardous Materials Safety, in writing, of any incident involving a package, shipment or operation conducted under terms of this special permit.

Issued in Washington, D.C.:



for Dr. Magdy El-Sibaie

Associate Administrator for Hazardous Materials Safety

Address all inquiries to: Associate Administrator for Hazardous Materials Safety, Pipeline and Hazardous Material Safety Administration, U.S. Department of Transportation, East Building PHH-30, 1200 New Jersey Avenue, Southeast, Washington, D.C. 20590.

Copies of this special permit may be obtained by accessing the Hazardous Materials Safety Homepage at

http://hazmat.dot.gov/sp_app/special_permits/spec_perm_index.htm

Photo reproductions and legible reductions of this special permit are permitted. Any alteration of this special permit is prohibited.

PO: LAVALLE:kah